HIGH COURT OF DELHI

APPELLATE JURISDICTION · SINGLE JUDGE

Bail Application No. 2841 of 2023 **CNR: DHC010028412023**

Date of Pronouncement: 03 July, 2023 *Citation: 2023:DHC:3842*

CORAM: Hon'ble Dinesh Kumar Sharma, J.

Petitioner / Appellant: Manish Sisodia

- VERSUS -

Respondent / State: Central Bureau of Investigation

SUBJECT: CRIMINAL LAW & PREVENTION OF CORRUPTION **AUTHORITY: Distinguished on Facts (Supreme Court granted bail in 2024)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Seriousness of economic allegations against high public functionaries must be balanced against individual liberties. However, where trial delay is not attributable to the accused and thousands of documents are yet to be marked, indefinite incarceration cannot serve as punitive custody.

STATUTORY PROVISIONS INTERPRETED: Section 439 CrPC, Section 7 PC Act, Section 120B IPC

FINAL DISPOSITION: BAIL DENIED WITH LIBERTY TO MOVE FRESH APPLICATION

EXECUTIVE SUMMARY:

Detailed consideration of regular bail parameters in complex economic offences involving public office holders. While bail was initially refused, principles of prolonged incarceration without trial were crystallized.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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